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DAVID LYONS

Moral Judgment, Historical Reality, and Civil Disobedience

This article concerns two strands of civil disobedience theory. One involves the moral judgment of theorists. The other concerns moral judgments that theorists ascribe to those who engage in civil disobedience.

Our philosophical literature on civil disobedience is largely a product of the late 1960s and early 1970s. Responding to critics of the civil rights and anti-Vietnam War movements, philosophers argued that unlawful protest can sometimes be justified. For a number of these writers, justifying civil disobedience means overcoming a serious moral objection. They assume we have a moral obligation to obey the law—in other words, political obligation.¹ Regarding this first strand of civil disobedience theory, I argue that the assumption of political obligation is morally untenable.

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1. See, e.g., H. A. Bedau, ed., *Civil Disobedience: Theory and Practice* (New York: Pegasus, 1969), p. 215; Carl Cohen, *Civil Disobedience: Conscience, Tactics, and the Law* (New York: Columbia University Press, 1971), pp. 2, 6; Marshall Cohen, "Liberty and Disobedience," *Philosophy & Public Affairs* 1, no. 3 (spring 1972): 288–96; Paul Harris, ed., *Civil Disobedience* (Lanham, Md.: University Press of America, 1989), pp. 2–4, 13–17, 34; Jeffrie G. Murphy, ed., *Civil Disobedience and Violence* (Belmont, Calif.: Wadsworth, 1971), pp. 5–8; John Rawls, "Legal Obligation and the Duty of Fair Play," in Sidney Hook, ed., *Law and Philosophy* (New York: New York University Press, 1964), p. 3; Peter Singer, *Democracy and Disobedience* (Oxford: Clarendon Press, 1973), pp. 136–47.

Two qualifications: In a review, Bedau questions Carl Cohen's assuming political obli-

Political obligation has recently received close philosophical scrutiny, which reveals that various arguments for it are exceedingly problematic.² These criticisms do not address the grievances of civil disobedients.

My strategy is different. **I propose a moral condition for political obligation, and I argue that this condition is clearly violated in paradigmatic cases of civil disobedience. As a consequence, we cannot assume civil disobedience requires moral justification, because we cannot assume there is a moral obligation to obey the law.**

Regarding the second strand of civil disobedience theory, some theorists assume that civil disobedients consider the prevailing system as “reasonably just” and accordingly seek limited reform, not radical change.³ This interpretation might seem to explain why civil disobedients accept arrest and punishment: their submission signifies acceptance of the prevailing system and acknowledges a moral obligation to obey the law. I argue that this view of civil disobedients is historically untenable.

The issue might seem to turn uninterestingly on how civil disobedience is delimited by theorists. In everyday speech, any principled disobedience to law may be counted as civil disobedience.⁴ But theorists often define it narrowly, distinguishing civil disobedience from other forms of principled noncompliance with law, and they may have perfectly good reason to do so.⁵

But when theorists regard as civil disobedience only acts of individuals who accept the prevailing system (and presumably recognize an obligation to comply with its laws), they impute such an outlook to para-

gation without argument; see *Journal of Philosophy* 69 (1972): 188. But he does not reject it there or in *Civil Disobedience in Focus* (New York: Routledge, 1991). More significantly, Rawls provides grounds for rejecting political obligation in the US and similar societies; see *A Theory of Justice* (Cambridge, Mass.: Harvard University Press, 1971), pp. 226, 355 (I discuss the latter below).

2. For a survey of the literature, see M.B.E. Smith, “The Duty to Obey the Law,” in D. Patterson, ed., *Companion to the Philosophy of Law and Legal Theory* (Oxford: Blackwell, 1996), pp. 464–74.

3. See, e.g., Carl Cohen, *Civil Disobedience*, p. 44 (“reasonably just,” p. 6); Marshall Cohen, “Liberty and Disobedience,” pp. 287–93; Murphy, *Civil Disobedience and Violence*, p. 1; A. D. Woosley, “Civil Disobedience and Punishment,” *Ethics* 86 (1976): 325.

4. Nonviolence may be assumed; to simplify matters, I assume it here. For another view, see John Morreall, “The Justifiability of Violent Civil Disobedience,” *Canadian Journal of Philosophy* 6 (1976): 35–47.

5. For a survey of the definitions, see Harris, ed., *Civil Disobedience*, pp. 1–15.

digm practitioners of civil disobedience, such as Henry David Thoreau, Mohandas K. Gandhi, and Martin Luther King, Jr.⁶ The result is a false picture of historically significant resistance.⁷

Thus my criticisms of civil disobedience theory center on three paradigm resisters and the targets of their resistance: chattel slavery, British colonial rule, and Jim Crow. I argue that none of these three regarded the prevailing system as “reasonably just” or accepted a moral presumption favoring obedience to law, and that their views were sound.

I am not concerned here with the definition of civil disobedience. I am concerned with the fact that some theorists embrace untenable judgments of American society and a false picture of political resistance.

Section I discusses the idea of political obligation that is implicit in civil disobedience theory. Section II argues that political obligation could not plausibly be imagined to have existed in the relevant settings. Section III argues that none of the paradigm resisters had a favorable appraisal of the prevailing system and that none endorsed political obligation. Section IV notes some arbitrary lines drawn by civil disobedience theory and seeks to explain the untenable judgments found within it.

I

Theorists who do not explicitly endorse political obligation may assume that civil disobedience is morally problematic and requires moral justification. If they do not suppose that obedience to law requires justification, they assume a moral obligation to obey the law. This can be seen as follows. Civil disobedience may be understood broadly, as principled nonviolent disobedience to law. But theorists commonly understand it narrowly, as, say, public protest aimed as persuading others that a law

6. Some writers regard Gandhi as too radical to be a civil disobedient; see, e.g., Murphy, *Civil Disobedience and Violence*, p. 2. Some regard Thoreau's tax refusal as insufficiently public to qualify as civil disobedience; more on this below. King's case is of special interest because his resistance occurred so recently in the US. Most who raise the point assume that King accepted the prevailing system; see, e.g., Carl Cohen, *Civil Disobedience*, pp. 108f (King a loyal disobedient); Marshall Cohen, “Liberty and Disobedience,” p. 296 (both Gandhi and King); Alan Gewirth, “Civil Disobedience, Law, and Morality: An Examination of Justice Fortas' Doctrine,” *The Monist* 54 (1970): 541 (King); A. D. Woosley, “Civil Disobedience and Punishment,” *Ethics* 86 (1976): 325 (Gandhi and King).

7. I sometimes refer to “resisters” and “resistance” so as not to prejudice what should count as civil disobedience.

or governmental policy is morally indefensible and must be changed, performed by someone who respects the prevailing system and willingly suffers the legal consequences of disobedience. On either a broad or narrow definition, the properties of civil disobedience other than disobedience to law are, and are regarded as, morally unobjectionable.⁸ The only plausible explanation for this set of views—that nonviolent civil disobedience requires justification but obedience to law does not—is a moral presumption favoring obedience to law (political obligation).

I say “moral presumption” because political obligation is reasonably understood by theorists to be defeasible, not absolute. If it exists, moral justification is required for disobedience to law. Theorists commonly assume that adequate justification may be available, in which case political obligation is outweighed.

It seems reasonable to suppose that just laws merit respect. But the same cannot be said of unjust laws. Because political obligation argues for obedience to both just and unjust laws and unjust laws do not automatically merit respect, theorists understand that political obligation itself requires justification.

There may be sound arguments for political obligation, but they would be limited by the principles they invoke. Consent principles, for example, apply when, but only when, there is genuine consent.

My concern here is with *moral* limits to such arguments. I assume that one cannot acquire a moral obligation to do certain things, such as participate in genocide or force someone into slavery, simply by consenting to do so. Like limits presumably apply to open-ended commitments, such as consenting to abide by the decisions to be made by some group of persons, which might include decisions to engage in genocide or to enslave others. Thus consent arguments for political obligation are morally limited.

Champions of the fairness argument believe that one is obligated to comply with social rules whose benefits one has sought and enjoyed. They apply the fairness principle to social systems as a whole.⁹ But fairness does not require one to acquiesce in an unjustly small share of

8. Assuming civil disobedience is nonviolent. Moral objections to violent resistance are irrelevant to the present point.

9. See John Rawls, “Legal Obligation and the Duty of Fair Play.” In *A Theory of Justice*, Rawls rejects the fairness argument and offers the duty of justice as a foundation for political obligation; see pp. 113f, 335–37.

benefits or an unjustly large share of burdens.¹⁰ Fairness arguments for political obligation assume a just distribution of benefits and burdens.

Such limits have their limits. If the point is to argue for obedience to unjust laws, we must assume that political obligation is possible in systems that are not perfectly just. To allow for the possibility that an obligation based on fairness might call for compliance with unjust laws, a fairness argument for political obligation cannot require a perfectly just distribution of benefits and burdens.

Thus theorists assume that political obligation can obtain when a system is not perfect, but is (as may be said) “nearly just,” “reasonably just,” or “fundamentally just.”¹¹ Such terms suggest the truism on which I shall now focus: there are limits to the injustice that is compatible with political obligation.

Theorists do not explain what qualifies as a “nearly just,” “reasonably just,” or “fundamentally just” society, and I shall not try.¹² I shall work instead from the other direction.

My argument requires one limit on political obligation (there may well be others). It is suggested by Rawls when he says that “in the long run the burden of injustice should be more or less evenly distributed over different groups within society, and the hardships of unjust policies should not weigh too heavily in any particular case.” Rawls then observes that “the duty to comply is problematic for permanent minorities that have suffered from injustice for many years.”¹³ That would seem a “provisional fixed point” of political morality.¹⁴

The proposition might be framed more generally: political obligation cannot coexist with significant, systematic injustice that is deeply en-

10. Nor does it permit one to command an unjustly large share of benefits or an unjustly small share of burdens.

11. See, respectively, *A Theory of Justice*, p. 351; Carl Cohen, *Civil Disobedience*, p. 6; Herbert J. Storing, “The Case Against Civil Disobedience,” reprinted in *Civil Disobedience: Theory and Practice and Civil Disobedience in focus*.

12. Rawls defines “a state of near justice” as “one in which the basic structure of society is nearly just, making due allowance for what it is reasonable to expect in the circumstances” (*A Theory of Justice*, p. 351). I understand the qualification to require us to consider official conduct. That is important because official conduct may be systematically unlawful in very significant ways for a long time, e.g., under Jim Crow (discussed in Section II).

13. Rawls, *A Theory of Justice*, p. 355.

14. For the idea of a provisional fixed point, see Rawls, *A Theory of Justice*, pp. 18–20, 46–48.

trenched. Although there can be reasonable disagreement about the application of these terms to some cases, that will not affect the present argument. The three examples I shall later discuss provide clear illustrations of deeply entrenched, significant, systematic injustice.

Before turning to the main argument, I should emphasize that I am not calling for disobedience to law. Political obligation is not the only moral factor favoring compliance. Other considerations can provide strong reason to abide by law, even when there is significant, deeply entrenched, systematic injustice.

Here are some examples. Some moral principles argue, in effect, for compliance with those laws that prohibit immoral behavior. One does not normally have the moral right to assault, cheat, coerce, harass, imprison, or kill another human being. Some moral principles endorse commitments to obey morally defensible subsets of the law. A doctor, for example, might be morally obligated to abide by a reasonable, legally enforced code of conduct for his profession. Such arguments do not assume political obligation.

Even those who are treated unjustly can have moral reason to comply with the culpable laws—when, for example, disobedience would expose innocent persons to risks they have not agreed to assume. And we can have moral reason to support a regime that is profoundly unjust—when it is endangered, for example, by forces that threaten to impose much worse injustice.

As these comments suggest, political responsibility goes well beyond an obligation to comply. Obedience is neither central nor essential. Whether our political responsibilities involve an obligation to obey depends on the character of the system and the circumstances.

By the same token, the absence of political obligation does not prevent us from identifying with our community and its people. Neither affection for nor solidarity with others is contingent upon respect for the prevailing system, loyalty to the regime in power, or acceptance of political obligation.

II

I turn now to the three examples and begin with what is presumably the easiest case.

1. *Chattel Slavery.* Thoreau's chief concern was slavery in the United

States.¹⁵ Its atrocities began with the commercial trade in slaves, in which vast numbers of Africans lost freedom, family, and homeland, and very many their lives, under horrible conditions. Survivors of the Middle Passage and their descendants were then treated as property to be used at their owners' pleasure or as outlets for their owners' cruelty. Slaves' economic value was the principal check on slavery's brutality. When the international slave trade was outlawed and reduced, it was supplemented by an internal trade built upon the systematic "breeding" of slaves.

Slavery was, of course, not a peripheral institution of antebellum America. Though gradually abolished by Northern states within the first half of the nineteenth century, the practice of buying, selling, oppressing, and super-exploiting a distinguishable class of human beings had by then existed for two hundred years, and its racist legacy pervaded American society.¹⁶ Trade in slaves and their products enriched Northern as well as Southern society. New England's industrial development rested squarely on manufacturing yarn and cloth from Southern cotton.

I assume there could be no moral presumption favoring obedience by slaves to laws that support their enslavement.¹⁷ That precludes political obligation. Some federal and state laws under slavery were no doubt worthy of respect, and the circumstances of specific actions could create good reasons to comply with laws supporting slavery, but all that is compatible with the present point.

2. *Colonial rule.* Gandhi resisted British colonial rule first in South Africa and then in South Asia.¹⁸ Consider Gandhi's view of the latter case: The British made India bear the cost of unnecessary wars, "main-

15. For the setting of Thoreau's resistance activities, see, e.g., Peter Kolchin, *American Slavery: 1619–1877* (New York: Hill and Wang, 1993).

16. See, e.g., Leonard P. Curry, *The Free Black in Urban America, 1800–1850: The Shadow of the Dream* (Chicago: University of Chicago Press, 1981); Leon F. Litwack, *North of Slavery: The Negro in the Free States, 1790–1850* (Chicago: University of Chicago Press, 1961).

17. At least, not in a system of slavery like that in the U.S. That is presumably a "provisional fixed point" if anything is.

18. For the setting of Gandhi's resistance activities, see Robert A. Huttenback, *Gandhi in South Africa: British Imperialism and the Indian Question, 1860–1914* (Ithaca, N.Y.: Cornell University Press, 1971); Judith M. Brown, *Gandhi's Rise to Power: Indian Politics 1915–1922* (Cambridge: Cambridge University Press, 1972); Judith M. Brown, *Gandhi and Civil Disobedience: The Mahatma in Indian Politics 1928–1934* (Cambridge: Cambridge University Press, 1977); Frances G. Hutchins, *India's Revolution: Gandhi and the Quit India Movement* (Cambridge, Mass.: Harvard University Press, 1973).

tained a ruinously costly civil and military administration, destroyed indigenous industries and de-industrialised India, ignored its agricultural development, caused massive unemployment and famine, and in general mercilessly exploited it." The British, Gandhi argued, "sapped the foundations of Indian civilisation, de-nationalised the Indians, ridiculed their society and religion, and foisted their values on them."¹⁹ British rule was moreover racist, degrading, violent, and brutal.

Now consider the following contrast. In the US it is widely assumed that by 1776 Britain had forfeited any right to rule its American colonies. This judgment is based largely on Britain's efforts to tax them. Britain's relations with its own colonists were benevolent by comparison with its subjugation of indigenous peoples in Africa and Asia.

British colonial rule there involved significant, deeply entrenched, systematic injustice. Neither Africans nor Asians could plausibly be regarded as morally obligated to accept British rule and obey laws that supported their subjugation. Some British colonial laws were no doubt worthy of respect, and the circumstances of specific actions could generate reason to comply with laws supporting British rule, but that is compatible with the present point.

3. *Jim Crow*. King's resistance activities were primarily directed against the system known as Jim Crow.²⁰ This was not primarily an arrangement of racial separation but a system of White supremacy—degrading, exploitative, and secured by terror.

After slavery was abolished, the federal Constitution was amended to secure basic rights for African Americans. In 1877, however, the federal government aborted efforts to enforce those rights. Violence and fraud were permitted to eliminate the remnants of Reconstruction and White supremacy was soon reestablished. State laws and constitutions were modified to exclude African Americans from the political process. Protections against rape, kidnapping, harassment, and murder were denied African Americans. All that was possible because of unlawful behavior by officials, the acquiescence of some, and the indifference of others.²¹

19. Bhikhu Parekh, *Gandhi's Political Philosophy: A Critical Examination* (London: Macmillan, 1991), pp. 127–28.

20. For the setting of King's resistance activities, see, e.g., C. Van Woodward, *The Strange Career of Jim Crow* (3rd rev. edn.; New York: Oxford University Press, 1974).

21. See, e.g., President's Committee on Civil Rights, *To Secure These Rights* (Washington, D.C.: U.S. Government Printing Office, 1947); United States Commission on Civil Rights, *1961 Commission on Civil Rights Report* (Washington, D.C.: U.S. Government Printing

The United States was publicly committed to due process, equal protection, and the rule of law, but for many decades government sanctioned their brutal, systematic denial to African Americans. Local officials would rarely interfere with, no less prosecute, violence against Blacks; they were frequently involved. And the federal government would not interfere. For African Americans, the rule of law was a false promise.

The Jim Crow system involved significant, deeply entrenched, systematic injustice. It is implausible to hold that a sound moral presumption favored obedience to all the laws of the land, including those that supported Jim Crow.²² Some federal and state laws were worthy of respect, and the circumstances of specific actions could generate reasons to comply with Jim Crow laws, but that is compatible with the present point.

Jim Crow provides a third refutation of the notion that civil disobedience can be assumed to require moral justification. Insofar as civil disobedience theory assumes that political resistance requires moral justification even in settings that are morally comparable to Jim Crow, it is premised on serious moral error.²³

III

I turn now to the notion that those who engage in civil disobedience assume that their unlawful conduct requires moral justification. True civil disobedients are supposed by theorists to regard the systems under which they live as morally flawed but basically just and requiring modest reform rather than fundamental change. Evidence of this outlook is seen in the disobedients' nonviolent methods and use of moral suasion rather than violent rebellion. Their submitting to arrest and punishment is taken as further evidence of respect for legal authority and recognition of a moral obligation to obey. Theorists who mention specific resisters

Office, 1961); United States Commission on Civil Rights, *Law Enforcement: A Report on Equal Protection in the South* (Washington, D.C.: U.S. Government Printing Office, 1965); Mary Frances Berry, *Black Resistance/White Law: A History of Constitutional Racism in America* (New York: Penguin, 1994).

22. The argument from democracy for political obligation is addressed by King; see Section III.

23. I return to this point in Section IV.

generally assume this is true of King; many include Gandhi; some add Thoreau.²⁴

Thoreau and Gandhi are of course very closely associated with the idea and practice of civil disobedience, as the term is used in everyday speech. Theorists do not deny that obvious point; and I do not object to their restricting the term “civil disobedience” to just one species of principled resistance. My concern is the resulting suggestion that the most respected resisters favorably appraised their systems and embraced a moral presumption favoring obedience to their most unjust laws.

Given the settings of their resistance, reviewed in Section II, it would not have been reasonable for Thoreau, Gandhi, or King to have regarded the prevailing system as sufficiently just to support political obligation. As these were not unreasonable men, the second part of my argument might end here. But to strengthen the argument, I shall consider their views more fully.

Thoreau, Gandhi, and King believed, with good reason, that their systems required fundamental change. They did not regard themselves as morally bound to obey unjust laws. No such notion framed the dilemmas they confronted when contemplating unlawful resistance. Their acceptance of legal sanctions signified a strategic, not a moral, judgment.

Gandhi's and King's rejection of violence reflected both moral scruples and prudent judgment, not an outlook favoring modest reform.²⁵ Violence was not a promising means of effecting the sort of social changes they sought, which included the support of those who were bound to lose their privileged status in a more equitable society.

1. *Thoreau*.²⁶ In his lecture on civil disobedience,²⁷ Thoreau linked his refusal to pay the Massachusetts poll tax to his state's support of the federal government's favorable policies towards chattel slavery.

That essay also reveals his view that government possesses no moral

24. See note 6.

25. Thoreau was not similarly committed to nonviolence.

26. See, e.g., Walter Harding, *The Days of Henry Thoreau: A Biography* (New York: Dover, 1982).

27. Thoreau's lecture is reprinted in Henry D. Thoreau, *Reform Papers*, ed. W. Glick (Princeton: Princeton University Press, 1973), pp. 63–90, under its original title, “Resistance to Civil Government.” Page references to that edition follow “RP” in the text. For more on Thoreau's essay, see my “Political Responsibility and Resistance to Civil Government,” *Philosophic Exchange* (1995–96): 5–25.

authority. "Government is at best an expedient; but most governments are usually, and all governments are sometimes inexpedient." Now conducting an aggressive, expansionist war against Mexico, which promised more scope for slavery, the U.S. government, he said, was "each instant losing some of its integrity" (RP 65). One "cannot without disgrace be associated" with "this American government today. . . . I cannot for an instant recognize that political organization as *my* government which is the *slave's* government also" (RP 67).

Thoreau regarded law no more favorably: "Law never made men a whit more just; and, by means of their respect for it, even the well-disposed are daily made the agents of injustice" (RP 65). Undue respect for law leads the "mass of men [to] serve the state . . . not as men mainly, but as machines, with their bodies. . . . Others . . . serve the state chiefly with their heads; and, as they rarely make any moral distinctions, they are as likely to serve the devil, without intending it, as God" (RP 66).

Thoreau believed we should sometimes comply with unjust law. "If the injustice is part of the necessary friction of government, let it go, let it go: perchance it will wear smooth" (RP 73). But "when the friction comes to have its machine, and oppression and robbery are organized, I say, let us not have such a machine any longer" (RP 67).

It might be suggested that Thoreau provides no counter-example to the notion that civil disobedients accept an obligation to obey the law. Rawls believes that Thoreau's tax refusal was not civil disobedience narrowly construed (which publicly calls for reform) but "conscientious refusal" (which may be done in private). Thoreau refused to pay the tax "on the grounds that to [pay] would make him an agent of grave injustice to another."²⁸

But Thoreau knew that others in Concord had been arrested for tax resistance and that his failure to pay would not go undetected. When asked by the tax collector for payment, Thoreau invited arrest, which he seems to have sought in order to dramatize his protest. As he expected, all of Concord soon learned of his jailing. His subsequent lecture implored others to act on their own anti-slavery convictions. If we regard his lecture as part of his continuing tax resistance, then the latter qualifies as civil disobedience, even under a narrow definition, and Thoreau provides a counter-example to the notion that civil disobedients have a

28. *A Theory of Justice*, p. 368.

favorable judgment of the prevailing system and accordingly acknowledge a moral presumption favoring obedience to law.

2. *Gandhi*.²⁹ Gandhi championed public, nonviolent protest, conduct that was calculated to cause opponents to consider grievances from the petitioners' point of view, and acceptance of punishment for unlawful resistance. These facts may suggest that Gandhi accepted the legitimacy of British rule and acknowledged a moral obligation to obey the law. But that would be a mistake.

Gandhi went to South Africa in 1893 to do some legal work. Soon becoming an outspoken critic of racist practices under British rule, he remained for two decades, mobilizing Asians and developing his theory of *satyagraha*. He first sought reforms by appealing to the doctrine of equal rights for all British subjects. But experience destroyed his respect for British rule and Britain's notion of civilization.

For the last three decades of his life, Gandhi labored for Indian independence. He led major campaigns in the 1920s and 1930s and developed the "Quit India" program of the 1940s, which called on the British to leave despite the Japanese invasion.

Gandhi held that, by its broken promises as well as its degrading and brutal treatment of Indians following World War I, Britain had "forfeited all claim to his allegiance." The colonial government showed "utter contempt" for the rights and dignity of its subjects. The colonial administration was corrupt and relied on terror. Indians "had a *right* to disobey it . . . and a duty to do so because as moral beings they had a duty to fight for the self-respect and dignity of their fellow-citizens." Although Gandhi believed a good state "deserved the benefit of the doubt," he held that one had no duty to comply with unjust laws.³⁰

Thus Gandhi rejected both the prevailing system and a moral presumption favoring obedience to all of its laws.

3. *King*.³¹ If any civil disobedient might be imagined to accept the

29. In addition to the sources already cited, see also by Gandhi, *Satyagraha in South Africa*, in *The Selected Works of Mahatma Gandhi*, vol. 3 (Ahmedabad: Navajivan Publishing House, 1968); *Hind Swaraj or Indian Home Rule*, revised new edition (Ahmedabad: Navajivan Publishing House, 1946); and *Quit India*, revised and enlarged edition (Bombay: Padma Publications, 1942).

30. Parekh, *Gandhi's Political Philosophy*, pp. 125–29.

31. Quotations in this section are from *Testament of Hope: The Essential Writings and Speeches of Martin Luther King, Jr.*, ed. J. M. Washington (San Francisco: HarperCollins, 1991), and are indicated by "TH" and the page reference. Information is also derived from Taylor Branch, *Parting the Waters: America in the King Years, 1954–1963* (New York: Simon and Schuster, 1988).

moral legitimacy of the prevailing system and recognize an obligation to obey its laws, it would be Martin Luther King, Jr. King called on the federal government to enforce the law. He agonized over disobeying patently unlawful court orders. He said that his campaigns expressed “the highest respect for law” (TH, e.g., 49, 293f).

But we must look more closely. First, we should not be misled by the limited aims of King’s resistance activities. Campaigns for social justice usually advance goals that are more modest than the participants’ ultimate objectives. The Montgomery bus boycott made very limited demands, which did not even include an end to segregation, but the boycotters’ ultimate aim was clear. As King said at the time, “What the Negro wants—and will not stop until he gets—is absolute and unqualified freedom and equality” (TH, 353).

Modest goals were important because Jim Crow was firmly entrenched. Blacks lacked power in the system, and many doubted their ability to effect even modest goals. King stressed that rights could not be realized without persistent mass action. To mobilize participants, campaigns must have realizable goals. To maintain participation, campaigns must sometimes succeed.

White supremacists understood that their system would not survive if modest campaigns succeeded, for it would mean that African Americans could effect change despite their exclusion from public office and the ballot. Each victory would increase their self-confidence and dishearten those seeking to preserve the racial hierarchy. That is why reactions to the boycott included official harassment and lawless violence.

Second, King’s commitment to nonviolence did not reflect favorably on the system. He emphasized that violent protest was not only immoral but impractical.³² Although violence was justifiably used in self-defense, it had no place in organized resistance, where it would divert attention from the issues and defeat the long-term goal of improving relations with Whites. And it would be futile, as Blacks were outnumbered and outgunned (TH, e.g., 32f, 56f).

Third, acceptance of punishment was strategic. “If you confront a man who has been cruelly misusing you, and say ‘Punish me, if you will; I do not deserve it, but I will accept it, so that the world will know I am right and you are wrong,’ then you wield a powerful and just weapon” (TH, 348).

32. See TH, e.g., pp. 17, 55, 83, 102, 361, 449, 525f.

Fourth, King called the system not only “unjust” but “evil” (TH, e.g., 47f, 360, 429). “The thing to do is get rid of the system” (TH, 47). It might be thought that King condemned only a local aberration. But legally enforced discrimination was pervasive. White domination was maintained by violent and degrading criminal activities that were officially sanctioned rather than prosecuted. Only the federal courts had taken dramatic steps in the direction of reform, but these were still quite limited, and the results were uncertain.

Fifth, King’s references to “the highest respect for law” accompanied his distinction between just and unjust law (TH, e.g., 48f, 293f, 356). King, like Gandhi, held that unjust laws merit no respect, and went on to refute a presumption favoring obedience.

In his “Letter from Birmingham City Jail,” for example, his review of the distinction between just and unjust law introduces a condemnation of Jim Crow. He first explains how it wrongs the individual. Then he stresses that Jim Crow law is imposed by a majority on a minority that is excluded from the political process (TH, 294). This clearly anticipates and rebuts an argument for political obligation that invokes the notion of democracy. Jim Crow laws *cannot* merit respect as products of a democratic process because the process that generates Jim Crow law excludes African Americans and is inherently *undemocratic*.

Finally, King never suggested that when he contemplated civil disobedience he faced a moral dilemma which included an obligation to obey the law. His first decision to violate a court order illustrates the point.

The Birmingham campaign of 1963 included a boycott of downtown stores to pressure the owners into ending racist practices. It was important because it followed an unsuccessful campaign in Albany, Georgia. Birmingham was, moreover, a stronghold of segregation.

Two moral dilemmas developed. Demonstrations had been postponed to avoid involvement in a municipal election. But as the Easter shopping season was ending, demonstrations were needed to strengthen the boycott. A march planned for Good Friday was then banned by an illicit court order. King had obeyed such an order in Albany, which he now regretted. But the Birmingham organizers feared that defiance of a court order might appear unprincipled to financial supporters—inconsistent with King’s reliance on law. And financial help would be needed to bail out arrested demonstrators. That was the first dilemma. When King and his colleagues were satisfied that they

could persuade their supporters of the importance of the march, they decided to defy the order, and the first dilemma was resolved.

A second dilemma arose the evening prior to the march. The city told a local bondsman who supplied bail for the demonstrators that he could not continue because his financial assets were inadequate. King later recalled:

It was a serious blow. We had used up all the money we had on hand for cash bonds. There were our people in jail, for whom we had a moral responsibility. Fifty more were to go with Ralph [Abernathy] and me. . . . Without bail facilities, how could we guarantee their eventual release? (TH, 542)

The organizers met the next morning to decide what to do. One said:

Martin . . . this means you can't go to jail. We need money. We need a lot of money. We need it now. You are the only one who has the contacts to get it. If you go to jail, we are lost. The battle of Birmingham is lost. (TH, 543)

King resolved this dilemma as follows:

I walked to another room. . . . I thought of the three hundred, waiting in prison. I thought of the Birmingham Negro community, waiting. Then . . . I thought of the twenty million black people who dreamed that someday they might be able to cross the Red Sea of injustice and find their way to the promised land of integration and freedom. There was no more room for doubt. (TH, 543)

King and his associates marched and were arrested.³³

Both dilemmas involved moral considerations and practical uncertainties. Neither involved a moral presumption favoring obedience to law.

King did appeal to the central values that we associate with the Declaration of Independence and the Constitution. But he stressed that America's commitments had not been translated into practice. He did not confuse promise with achievement. He praised our ideals but condemned our practice (TH, e.g., 274).

King did not regard racism as a peripheral problem of American soci-

33. While in custody, King wrote "Letter from Birmingham City Jail."

ety, and he was right. He too refutes the notion that civil disobedients accept an obligation of obedience to law.

IV

I want now to suggest some lessons to be drawn from my argument.

1. *Lawful and unlawful conduct.* Much of civil disobedience theory assumes there is a morally significant difference between lawful and unlawful resistance. The first part of my argument shows that assumption to be mistaken in leading cases. In the absence of a blanket moral obligation to comply with law, we cannot assume that the distinction has moral significance. If the condition I employed in that argument is sound, then I think the assumption can rarely, if ever, be made. Few, if any, human societies have been free of significant, deeply entrenched, systematic injustice.

The second part of my argument reveals that the distinction between lawful and unlawful resistance had practical but not moral importance to Thoreau, Gandhi, and King.³⁴ I would suggest that the same is true of principled resisters generally. Those with grievances serious enough to lead them into perilous conflict with dominant groups do not typically embrace a favorable appraisal of the prevailing system; nor do they think of themselves as morally bound to obey laws that seem to them outrageously unjust.

I suggest, further, that the distinction is practically of no greater importance to the resisters' opponents, those who defend the status quo. Experience shows that, in the face of resistance against significant, deeply entrenched, systematic injustice, those who break the law, at least initially, are often not resisters but officials and their supporters, employing unlawful methods against resisters and failing to arrest unlawful attacks on them or to prosecute the perpetrators. This has been true in the U.S.,³⁵ and I suspect it is true elsewhere as well.

34. Gandhi's and King's lawful resistance was quite important and has not always been distinguished from their unlawful resistance. Noncooperation with the colonial government, the principal means of the all-India independence campaign of the 1920s, did not violate colonial law. Refraining from bus usage in Montgomery was not itself unlawful.

35. See, e.g., Ward Churchill and Jim Vander Wall, *Agents of Repression: The FBI's Secret War Against the Black Panther Party and the American Indian Movement* (Boston: South End Press, 1988); Ward Churchill and Jim Vander Wall, *The Cointelpro Papers: Documents From the FBI's Secret War Against Domestic Dissent* (Boston: South End Press, 1990); Frank

Insofar as civil disobedience theory assumes political obligation, it distorts the outlook of principled resisters. The literature also tends to ignore the governments' repression of lawful protest and dissent.

2. *Moral misjudgment.* Given the first part of my argument, one cannot help wondering why theorists of civil disobedience should have imagined a moral presumption favoring compliance with laws supporting brutally oppressive institutions. For the injustices addressed have been significant, systematic, and deeply entrenched, and the theorists have usually been sympathetic to the resisters' grievances.

It might be suggested that the assumption of political obligation had merely tactical value. The relevant literature defended civil rights and antiwar campaigns that were condemned by officials and other prominent citizens. Despite the decorous character of most civil rights campaigns, for example, the movement was highly controversial. It emerged in the 1950s, during a period of anti-Communist hysteria and political repression, in which the government at all levels routinely persecuted lawful dissenters. Civil rights activists went further than most other dissenters not only by challenging authority but by occasionally breaking the law. To make matters worse, most civil rights activists were Americans of color, who were expected to know their place in the officially sanctioned system of White supremacy.

Under the circumstances, the most pressing issue for theorists who sympathized with the movement was the justifiability of its unpopular actions even when they broke the law. For critics of civil disobedience invoked the notion of a comprehensive moral obligation to comply with law, especially in a self-styled constitutional democracy. Theorists understood that any plausible obligation to obey must be defeasible and could be outweighed. They saw that the movement identified grave deficiencies that officially sanctioned procedures failed to address. They argued that a just system allows room for a limited class of unlawful acts which aim at reform. They focused, understandably, on the most decorous, least threatening, most easily justifiable form of political resistance, in which disobedients act publicly and accept arrest and punishment.

J. Donner, *The Age of Surveillance: The Aims and Methods of America's Political Intelligence System* (New York: Knopf/Random House, 1980); Frank J. Donner, *Protectors of Privilege: Red Squads and Police Repression in Urban America* (Berkeley: University of California Press, 1990).

The theorists' assumption of political obligation does not appear, however, to have been merely tactical. A number of sympathetic theorists agreed with critics that the burden of justification falls on one who disobeys the law.³⁶

But how could philosophers of good will have assumed that moral justification was required to disobey laws supporting chattel slavery, racist colonialism, or Jim Crow? If I am right in regarding that assumption as morally indefensible, then we must entertain the possibility of a systematic defect in the moral framework that obtained. The judgment of those of us who took political obligation for granted—despite the obvious existence of intolerable, deeply entrenched, systematic injustice against clearly identified groups within our society—was distorted by inadequate sensitivity to the palpable impact of the oppression, especially on those of color.

Many Americans of European ancestry disapproved of White supremacy but did little about it.³⁷ Their moral judgment affected their choice of political party and of candidates for public office, but not much else. White supremacy was not perceived as a pressing moral problem that called for concerted action.³⁸

That was a moral failing. The discounting and resultant toleration of outrageous, deeply entrenched, systematic injustice amounted to culpable indifference.

Racism often involves naked hostility, inhuman cruelty, and brutal violence toward persons who are identified in racial terms. It often involves harsh measures to secure status in a racial hierarchy. It often involves such overtly racist behavior—but not always. I suggest it can also involve, for example, tolerance of racist conduct or of racist social arrangements because of a failure to attach proper importance to known facts which primarily concern people with whom one does not identify in racial terms.³⁹

My suggestion, then, is that theorists' endorsement of political obligation, while possessing sufficient knowledge of settings like Jim Crow,

36. See note 1 for explicit endorsements (not merely tactical assumptions) of political obligation.

37. As Thoreau made clear, they were his intended audience.

38. I say concerted action because political responsibility only occasionally calls for isolated acts by individuals outside the context of a movement for reform.

39. Racism can take other forms, e.g., neglecting to learn about such phenomena when one is vaguely aware of their existence.

can reasonably be characterized as a derivative but socially important form of racism.

Two qualifications are required. First, most of the relevant literature is now twenty-five years old or more. Political philosophy has since changed. Many of us have become skeptics about political obligation.

Our moral sensibilities have also changed. It is more difficult than ever before for one to discount the interests of groups that are identified in racial terms. The related difficulty that we now face is the idea that the legacy of racial injustice can be rectified by “color blind” political policies. But that is a subject for another occasion.

Second, although White supremacy remains a major feature of American society, it would be a mistake to depict the moral failing to which I have referred in purely racial terms. Analogous attitudes have affected judgment and conduct concerning women as well as various ethnic groups. In these connections, too, moral sensibilities have improved. It remains to be seen by how much and whether we shall develop collective action that is calculated to overcome the significant, deeply entrenched, systematic injustice that remains.